Chapter 20.40 - COMMERCIAL ZONING DISTRICTS AND PUBLIC/QUASI-PUBLIC ZONING DISTRICT

Part 1 - GENERAL

20.40.010 - Commercial zoning districts.

A. This chapter sets forth the land use and development regulations applicable to the Commercial Zoning Districts and Public/Quasi-public District established by Section 20.10.060.

B. No building, structure, or land shall be used, and no building or structure shall be erected, enlarged, or structurally altered, in the CO, CP, CN and CG Commercial Districts and PQP Public/Quasi-Public District except as set forth in this chapter.

C. The Commercial Zoning Districts are intended to support the commercial land use, economic development, and neighborhood preservation and conservation goals and policies of the general plan through the use regulations and development standards. The Commercial Districts reflect the diversity of the commercial needs and opportunities in the city. The purposes of the Commercial Districts are as follows:

1. CO Commercial Office District. The CO Commercial Office District is a district in or near residential areas or between residential and commercial areas. This district is intended to be a low-intensity office zone that allows for a scale of offices in or adjacent to residential neighborhoods. Larger scale office development can be permitted upon approval of the planning commission, or city council on appeal, through the conditional use permit process.

2. CP Commercial Pedestrian District. The CP Commercial Pedestrian District is a district intended to support pedestrian-oriented retail activity at a scale compatible with surrounding residential neighborhoods. This district is designed to support the goals and policies of the general plan related to Neighborhood Business Districts. The CP Commercial Pedestrian District also encourages mixed residential/commercial development where appropriate, and is designed to support the commercial goals and policies of the general plan in relation to Urban Villages. This district is also intended to support intensive pedestrian-oriented commercial activity and development consistent with general plan urban design policies.

   This district may be located, in addition to areas of the city that have a commercial land use designation in the general plan, in areas that have an Urban Village land use designation. In these locations, the uses and development in this district are intended to be in conformance with applicable approved Urban Village Plans. The type of development supported by this district includes Neighborhood Business Districts, neighborhood centers, multi-tenant commercial development along city connector and main streets as designated in the general plan, and small

corner commercial establishments. New development should orient buildings towards public streets and transit facilities and include features to provide an enhanced pedestrian environment.

3. CN Commercial Neighborhood District. The CN Commercial Neighborhood District is a district intended to provide for neighborhood serving commercial uses without an emphasis on pedestrian orientation except within the context of a single development. This district also differs from the CP Commercial Pedestrian District in that there is no limit on the size of the stores. The type of development supported by this district includes neighborhood centers, multi-tenant commercial development along city connector and main streets, and small corner commercial establishments.
4. CG Commercial General District. The CG Commercial General District is a district intended to serve the needs of the general population. This district allows for a full range of retail and commercial uses with a local or regional market. Development is expected to be auto-accommodating and includes larger commercial centers as well as regional malls.

D. The PQP Public/Quasi-Public District is intended to provide for publicly serving uses on lots that are designated Public/Quasi-Public on the General Plan Land Use/Transportation Diagram. The publicly serving land uses within this district can include schools, colleges, research institutions, corporation yards, homeless shelters, libraries, fire stations, water treatment facilities, convention centers with integrated hotels and restaurants, auditoriums, museums, governmental offices, airports, stadiums, and other similar publicly-oriented institutional land uses with associated incidental commercial uses supporting such publicly-oriented institutional land uses. This district may also accommodate private schools, daycare centers, hospitals, public utilities, and the facilities of any organization involved in the provision of public services such as gas, water, electricity, and telecommunications facilities that are consistent in character with established public land uses. Private community gathering facilities, including those used for religious assembly or other comparable assembly activity, may also be considered. The appropriate intensity of development can vary considerably depending on potential impacts on surrounding uses and the particular Public/Quasi-Public use developed on a site.

(Ords. 26248, 27457, 29012, 29364.)

Part 2 - USES ALLOWED

20.40.100 - Allowed uses and permit requirements.

A. "Permitted" land uses are indicated by a "P" on Table 20-90.

B. "Conditional" uses are indicated by a "C" on Table 20-90. These uses may be allowed in such designated districts, as an independent use, but only upon issuance of and in compliance with a Conditional Use Permit as set forth in Chapter 20.100. "Conditional" uses which may be approved

only on parcels designated on the land use/transportation diagram of the General Plan, as amended, with a designation that allows residential use are indicated by a "C GP" on Table 20-90. These uses may be allowed in such designated districts, as a part of mixed use residential/commercial, but only upon issuance of and in compliance with a Conditional Use Permit as set forth in Chapter 20.100.

C. "Conditional" uses requiring City Council approval as the initial decision-making body are indicated by a "CC" on Table 20-90. These uses may be allowed in such designated districts, as an independent use, but only upon issuance of and in compliance with a Conditional Use Permit approved by the City Council as set forth in Chapter 20.100. Applications for these uses shall first be considered by the Planning Commission at a public hearing of the Commission for the Commission's report and recommendation on the application to the City Council pursuant to the processes set forth in Chapter 20.100.

D. "Special" uses are indicated by an "S" on Table 20-90. These uses may be allowed in such designated districts, as an independent use, but only upon issuance of and in compliance with a Special Use Permit as set forth in Chapter 20.100. "Special" uses which may be approved only on parcels designated on the land use/transportation diagram of the General Plan, as amended, with a designation that allows residential use are indicated by an "S GP " on Table 20-90. These uses may be allowed in such designated districts, as a part of mixed use residential/commercial, but only upon issuance of and in compliance with a Special Use Permit as set forth in Chapter 20.100.

E. "Administrative" uses are indicated by an "A" on Table 20-90. These uses may be allowed in such designated districts, as an independent use, but only upon issuance of and in compliance with an Administrative Permit as set forth in Chapter 20.100.

F. "Restricted" land uses are indicated by an "R" on Table 20-90. These uses may occur in such designated districts, as an independent use, but only upon issuance of and in full compliance with a valid and effective zoning code verification certificate as set forth in Chapter 20.100.

G. Land uses not permitted are indicated by a "-" on Table 20-90. Land uses not listed on Table 20-90 are not permitted.

H. When the right column of Table 20-90 includes a reference to a section number or a footnote, the regulations cited in the section number or footnote applies to the use. In addition, all uses are subject to any other applicable provision of this Title 20 and any other title of the San José Municipal Code.

Table 20-90

Commercial Zoning Districts and

Public/Quasi-Public Zoning District Use Regulations

Use	Zoning District					Notes & Section
	CO	CP	CN	CG	PQP	
General Retail						
Alcohol, off-sale - beer and/or wine only	-	C	C	C	-	Note 21; Section 20.80.900
Alcohol, off-sale - full range of alcoholic beverages	-	C	C	C	-	Note 21; Section 20.80.900
Alcohol, off-sale - as incidental to a winery, brewery, or distillery	-	S	S	S	-	Note 4
Food, beverages, and groceries	-	P	P	P	S	
Nursery, plant	P	P	P	P	P	Note 1
Outdoor vending	-	A	A	A	A	Part 10, Chapter 20.80
Outdoor vending, fresh fruits, and vegetables	P	P	P	P	P	Part 10, Chapter 20.80
Pawn shop/broker	-	C	C	C	-	See Title 6
Retail art studio	-	P	P	P	-	Note 21; Section 20.80.1175
Retail bakery	-	P	P	P	-	Note 21
Retail sales, goods, and merchandise	-	P	P	P	-	Note 21
Seasonal sales	P	P	P	P	-	Part 14, Chapter 20.80

Agriculture						
Aquaculture, aquaponics, and hydroponics	S	S	S	S	S	
Certified farmers' market	S	S	S	S	S	Part 3.5, Chapter 20.80
Certified farmers' market, small	P	P	P	P	P	Part 3.5, Chapter 20.80
Neighborhood agriculture	P	P	P	P	P	Note 19; Title 7
Drive-Through Uses						
Drive-through uses in conjunction with any use	-	-	C	C	C	
Education and Training						
Child day care center located on an existing School Site or as an incident to a permitted on-site church/religious assembly use involving no building additions or changes to the site	P	P	P	P	P	Note 21
Child Day Care Center	S	S	S	S	S	
Child Day Care Center co-located with Multifamily housing development	-	P	P	P	-	Note 31
Instructional art studios	-	P	P	P	S	
Private instruction, personal enrichment	-	P	P	P	S	
School, elementary and secondary (public or private)	C	C	C	C	S	Note 16, Note 20, and Note 21

School, driving (class C & M license)	-	P	P	P	S	Note 2, Note 20, and Note 21
School, post-secondary	-	P	P	P	S	Note 3, Note 20, and Note 21
School, trade and vocational	-	C	C	C	S	Note 16, Note 20, and Note 21
Entertainment and Recreation						
Arcade, amusement game	-	P	P	P	-	Note 21
Health club, gymnasium	-	P	P	P	S	
Performing arts rehearsal space	-	P	P	P	-	
Poolroom/billiards establishment	-	P	P	P	-	Note 21
Private club or lodge	C	C	C	C	-	
Recreation, commercial indoor	-	P	P	P	S	Note 21
Recreation, commercial outdoor	-	C	C	C	C	Note 21
Relocated cardroom	-	-	-	C	-	Section 20.80.1155
Stadium, 2,000 seats or fewer	-	C	C	C	C	Note 17
Stadium, more than 2,000 seats	-	CC	CC	CC	CC	Note 17 and Note 18
Theater, indoor	-	S	S	S	S	Note 21
Theater, outdoor	-	-	-	S	S	Note 21
Food Services						
Banquet facility	-	S	S	S	S	

Caterer	-	P	P	P	S	
Commercial kitchen	-	S	P	P	-	
Drinking establishments	-	C	C	C	-	Note 21
Drinking establishments interior to a full-service hotel or motel that includes 75 or more guest rooms	-	P	P	P	-	Section 20.80.475; Note 21
Public eating establishments	-	P	P	P	-	Note 21
Public eating establishment or retail establishment with incidental outdoor dining	-	P	P	P	-	Note 21; Section 20.40.520
Public eating establishment in conjunction with a winery, brewery, or distillery	-	P	P	P	-	
Taproom or tasting room with off-sale of alcohol	-	A	A	A	-	Part 5.75, Chapter 20.80
General Services						
Bail bond establishment - outside main jail area	-	P/S	P	P	-	Note 5; Part 1.5, Chapter 20.80
Bail bond establishment - within main jail area	-	P/S	P	P	-	Note 5 and Note 14; Part 1.5, Chapter 20.80
Bed and breakfast Inn	-	P	P	P	-	Note 21; Part 2, Chapter 20.80
Dry cleaner	-	P	P	P	-	Note 21
Hotel or motel	-	P	P	P	-	Note 21

Single room occupancy (SRO) hotel	-	C	C	C	-	Part 15, Chapter 20.80
Laundromat	-	P	P	P	-	Note 21
Maintenance and repair, small household appliances	-	P	P	P	-	Note 21
Messenger services	P	P	P	P	-	Note 2 and Note 21
Mortuary and funeral Services	P	P	P	P	-	Note 21
Personal services	-	P	P	P	-	Note 21; Section 20.200.880
Photo processing and developing	-	P	P	P	-	Note 21
Printing and publishing	-	P	P	P	-	Note 21
Social service agency	-	S	S	S	S	
Health and Veterinary						
Animal boarding, indoor	P/-	P	P	P	P/S	Note 8, Section 20.40.120
Animal grooming	P/-	P	P	P	P/S	Note 8 Section 20.40.120
Emergency ambulance service	C	C	C	C	C	
Hospital/in-patient facility	C	C	C	C	C	Note 21
Medical cannabis dispensary	-	R	R	R	-	Part 9.75, Chapter 20.80

Cannabis retail storefront	-	R	R	R	-	Part 9.75, Chapter 20.80
Medical cannabis collective dispensary site only	-	R	R	R	-	Part 9.75, Chapter 20.80
Office, medical	P	P	P	P	S	Note 21
Veterinary clinic	-	P	P	P	C	Note 16
Historic Reuse						
Historic landmark structure reuse	S	S	S	S	S	Part 8.5, Chapter 20.80
Offices and Financial Services						
Automatic teller machine	P	P	P	P	S	Section 20.80.200
Business support	-	P	P	P	-	Note 21
Financial services	P	P	P	P	-	Note 21
Office, general business	P	P	P	P	S	Note 21; Section 20.40.110
Payday lending establishment	-	R/-	R	R	-	Note 24 Part 12.5, Chapter 20.80 Section 20.200.875
Retail bank	P	P	P	P	-	Note 21

Public, Quasi-Public and Assembly Uses						
Cemetery	C	C	C	C	C	
Church/religious assembly	S	S	S	S	S	Note 16, Note 20, and Note 21
Construction/corporation yard associated with public, quasi-public or assembly use or transportation or utility use	-	-	-	-	C	
Museums, libraries, parks, playgrounds, or community centers (publicly operated)	P	P	P	P	P	Note 21
Museums, libraries, parks, playgrounds, or community centers (privately operated)	C	C	C	C	S	Note 20 and Note 21
Recycling Uses						
Reverse vending machine	A	A	A	A	A	Part 13, Chapter 20.80
Small collection facility	A	A	A	A	A	Part 13, Chapter 20.80
Residential						
Emergency residential shelter within Airport Influence Area	-	S	S	S	S	Section 20.80.500
Emergency residential shelter outside of Airport Influence Area (more than 150 beds)	-	S	S	S	S	Section 20.80.500

Emergency residential shelter outside of Airport Influence Area (150 beds or fewer)	-	P	P	P	P	Section 20.80.500, Chapter 20.195
Hotel supportive housing	C	C	C	C	C	Note 22; Part 22, Chapter 20.80
Live/work uses	-	S	S	S	-	Note 6; Section 20.80.740
Low barrier navigation center	-	P	P	P	P	Chapter 20.195
Mixed use residential/commercial outside Neighborhood Business District Overlay	-	C/S	C	CGP	-	Note 6, 25 and 26
Mixed use residential/commercial within Neighborhood Business District Overlay	-	P	P	P	-	Note 28, 29 and 30
Permanent supportive housing	-	-	-	-	P	Note 27; Chapter 20.195
Residential care facility for seven or more persons	C	C	C	C	C	
Residential service facility	P	P	P	P	P	
Single room occupancy, living unit	-	C	C	C	-	Note 6; Part 15, Chapter 20.80
Transportation and Utilities						
Data center	-	-	-	C	-	Note 21
Commercial vehicle storage	S	-	-	S	S	
Common carrier depot	S	-	S	S	S	Note 21

Community television antenna systems	C	C	C	C	C	
Parking establishment, off-street	C	-	C	C	-	
Short term parking lot for uses or events other than on-site	-	-	-	C	C	Note 7
Television, radio studios without antenna/dishes	-	-	-	C	C	
Utility facilities, excluding corporation yards, storage or repair yards and warehouses	C	C	C	C	C	
Utility facilities including corporation yards, storage or repair yards and warehouses	-	-	-	-	C	
Wireless communication antenna	C	C	C	C	C	Note 23; Sections 20.100.1300, 20.80.1915
Wireless communication antenna, slimline monopole	S	S	S	S	S	Note 23; Sections 20.80.1900, 20.80.1915
Wireless communication antenna, building mounted	P	P	P	P	P	Note 23; Sections 20.80.1910, 20.80.1915
Utilities, Electrical Power Generation						
Co-generation facility	S	S	S	S	S	
Fuel cells	P	P	P	P	P	
Private electrical power generation facility	C	C	C	C	C	Note 2

Solar photovoltaic system	P	P	P	P	P	Section 20.100.610 C.7.
Stand-by/backup facilities that do not exceed noise or air standards	A	A	A	P	A	
Stand-by/backup facilities that do exceed noise or air standards	C	C	C	C	C	
Temporary stand-by/backup	P	P	P	P	P	
Vehicle Related Uses						
Accessory installation, passenger vehicles and pick-up trucks	-	-	C	P	-	
Auto dealer, wholesale - no on-site storage	P	P	P	P	-	
Car wash, detailing	-	-	C	C	-	
Fuel service station or charge station, no incidental service or repair	-	C	C	P	C	Note 15
Fuel service station or charge station with incidental service and repair	-	-	C	P	C	Note 9 and Note 13,
Glass sales, installation, and tinting	-	-	C	P	-	Note 13
Leasing (rental) passenger vehicles, pick-up trucks not exceeding twenty-five feet in length, and motorcycles	-	-	C	P	-	Note 2
Sale, brokerage, or lease, commercial vehicles	-	-	C	C	-	Note 13
Sale or brokerage, passenger vehicles, pick-up trucks not exceeding 25 feet in length, and motorcycles	-	-	S	P	-	Note 12 and Note 13

Sale, vehicle parts	-	-	P	P	-	Note 11
Tires, batteries, lube, oil change, smog check station, air conditioning servicing of passenger vehicles and pick-up trucks	-	-	C	P	-	Note 10 and Note 13

Notes applicable to all commercial districts:

1. In the CP district, landscaping materials, such as rock, mulch, and sand are limited to prepackaged sales.
2. Classroom use only, no driving courses or onsite storage of vehicles permitted in the CP, CN, and CG Zoning Districts.
3. Includes public and private colleges and universities, as well as extension programs and business schools.
4. Alcohol, off-sales are limited to products manufactured onsite for wineries, breweries, or distilleries.
5. Permitted outside of Urban Village; Special Use Permit in Urban Villages.
6. Mixed use residential/commercial development may be approved only on parcels designated on the land use/transportation diagram of the General Plan with a designation that allows residential use or through a General Plan or Urban Village Policy that allows mixed use development on a non-residential parcel.
7. Use must be less than twenty-four hours.
8. Permitted only as incidental to neighborhood agriculture; otherwise prohibited in CO. In PQP the use is permitted only as incidental to neighborhood agriculture; otherwise, a Special Use Permit is required.
9. Incidental repair includes non-invasive engine service, maintenance, and repair, including but not limited to, air conditioning service, fuel system service, electrical service, coolant system service, tune-up, fluid exchanges, steering and suspension system service, brake system service, transmission adjustment and service, lube, oil change, smog check, diagnostics and vehicle inspections, stock catalytic converters and manifolds, as well as tires, batteries and accessories installation. Does not allow body repair, welding, vehicle restorations, other types of exhaust system repair, the removal of cylinder heads, engines, transmissions/transfer cases and differentials, or painting.

10. Includes non-invasive engine service, maintenance, and repair, including but not limited to, air conditioning service, carburetor and fuel injection system service, electrical service, radiator coolant system service, and tune-up, fluid exchanges, steering and suspension system service, brake system service, transmission adjustment and service, lube, oil change, and smog check, diagnostics and vehicle inspections, stock catalytic converters and manifolds, as well as tires, batteries and accessories installation. Does not allow body repair, welding, vehicle restorations, other types of exhaust system repair, the removal of cylinder heads, engines, transmissions/transfer cases and differentials, or painting.
11. No outdoor sales areas or dismantling allowed.
12. In the CG district, incidental repair of vehicles requires a Special Use Permit. Incidental repair of vehicles is prohibited in all other commercial districts.
13. All vehicle-related repair, service, and accessory or other installation shall be conducted within a fully enclosed building.
14. Bail bond establishments shall not be located and are prohibited uses on the ground floors of structures located within the main jail area, as that area is defined in Section 20.80.070 of Chapter 20.80 of this Title. Bail bond establishments are allowed as shown on Table 20-90 on other, above-ground floors of structures. All bail bond establishments shall meet all distance requirements specified in Section 20.80.075 of Chapter 20.80 of this Title.
15. Charging stations that are incidental to a separate primary use that do not impact on-site or off-site vehicular circulation, and that serve patrons of the primary use on-site are permitted in all commercial zoning districts. Hydrogen-fueling stations shall be permitted pursuant to Government Code Section 65850.7.
16. Public schools are subject to the regulations of this Title, subject to the provisions of California Government Code Section 53094 for classroom facilities.
17. Primary uses include sporting events, assembly venues, concerts, and entertainment events of similar character and intensity. Incidental support uses include offices, locker rooms, retail, public eating establishments, drinking establishments, outdoor vending facilities, and other commercial uses of similar character and intensity.
18. Use permit applications for stadiums that consist of more than 2,000 seats and that are in airport influence areas shall be referred to the Santa Clara Airport Land Use Commission prior to approval by the City.
19. Neighborhood agriculture in conformance with this Title is a permitted use that may operate on a site without a permanent building on that site.
20. The City Council is the decision-making body for Special Use Permit appeals for this use pursuant to Section 20.100.220 of this Title.
21.

In the PQP public/quasi-public zoning district, the following uses may be allowed as a use supporting and incidental to a primary PQP use:

a. Offices, retail, public eating establishments, and other commercial uses of similar character and intensity, with approval of a Special Use Permit; and

b. Drinking establishments, off-sale of alcoholic beverages, arcade amusement games, poolroom/billiards establishments, wineries, breweries, distilleries, and data centers, with approval of a Conditional Use Permit.

22. Hotel supportive housing may be permitted only with a Conditional Use Permit pursuant to Part 22 of Chapter 20.80 and only until December 31, 2026.
23. Certain modifications of existing wireless facilities may be permitted with an Administrative Permit in accordance with Section 20.80.1915 of Chapter 20.80.
24. Restricted outside of Urban Villages; Prohibited in Urban Villages.
25. Conditional Use Permit required outside of Urban Villages; Special Use Permit in Urban Villages.
26. Permanent supportive housing is allowed as a residential component of mixed use residential/commercial.
27. Permanent supportive housing is only allowed in the PQP district as 100% of the residential use.
28. The Neighborhood Business District Overlay includes North 13th Street, Japantown (Taylor Street only), and the Willow Glen Neighborhood Business District.
29. 100% deed-restricted affordable housing is a permitted use and commercial space requirements shall not apply; subject to conformance with General Plan policies and state law mandates. Refer to Chapter 20.195 for information regarding the ministerial approval process.
30. One-hundred percent residential projects may be permitted if they meet ground floor commercial space standard in Table 20-142, Table 20-143, or Table 20-144.
31. Child Day Care Centers are considered a permitted use when co-located as part of a multi-family housing development that is equal or less in square footage when compared to the multi-family development.

(Ords. 26248, 26326, 26388, 26455, 26456, 26704, 27091, 27468, 27564, 27701, 27757, 27797, 28320, 28321, 28449, 28579, 28694, 28791, 28954, 28958, 29011, 29012, 29042, 29089, 29122, 29218, 29254, 29364, 29420, 29447, 29546, 30190, 30290, 30372, 30422, 30480, 30516, 30696, 30727, 30786, 30984, 31097, 31149, 31168, 31298, 31329.)

20.40.110 - Incidental uses, office.

Subject to the conditions, limitations and restrictions hereinafter set forth, space situate entirely within a building used for business, professional or administrative office purposes may be used for the operation of a restaurant, café or newsstand if:

1. The use of such space for a restaurant, café or newsstand is incidental and auxiliary to the primary and main use of the building for one or more of the above uses;
2. The gross floor area of such building is fifty thousand square feet or more;
3. Two hundred fifty or more persons are employed in such building;
4. The only public access to the restaurant, café, newsstand is by way of an interior lobby or court, and there is not direct access thereto from outside the building;
5. The total combined gross floor area of all restaurants, cafés, and newsstands in any one building shall not exceed one-tenth the total gross floor area of the entire building.

(Ords. 26248, 29364.)

20.40.115 - Incidental use, residential.

Where residential use has been permitted pursuant to a conditional use permit, special use permit or administrative permit, incidental transient occupancy in compliance with Part 2.5 of Chapter 20.80 is a permitted incidental use of the permitted dwelling.

(Ord. 29523.)

20.40.120 - Animal uses.

Except as an incidental use to neighborhood agriculture, all uses involving any type of care for animals, including but not limited to grooming, boarding, medical care, must be conducted wholly inside a building.

(Ords. 26248, 29364.)

20.40.130 - Reserved.

Editor's note— Ord. 28858, adopted November 30, 2010, repealed § 20.40.130, which pertained to live/work units. Please see § 20.80.740.

20.40.140 - Reserved.

Editor's note— Ord. 28858, adopted November 30, 2010, repealed § 20.40.140, which pertained to retail art studio. Please see § 20.80.1175.

Part 3 - DEVELOPMENT REGULATIONS

20.40.200 - Development standards.

All development in the Commercial Zoning Districts and the Public/Quasi-Public Zoning District shall conform to the development regulations set forth below in Table 20-100.

Table 20-100

Commercial Zoning Districts

Development Standards

Regulations	Zoning District				
	CO	CP	CN	CG	PQP
Minimum lot area (square feet or acreage)	6,000	6,000; or as established in approved Urban Village Plan	6,000; or as established in approved Urban Village Plan	1 acre (none if lot is located in a shopping center with shared access and shared parking among the lots)	6,000
Minimum Setback (feet)					
Front	10, or 15 where adjacent to side property line of R-1 district	no minimum, 10 feet maximum; or as established in approved Urban Village Plan	10, or as established in approved Urban Village Plan	15	10; less than 10 if established in approved development permit
Side, interior	5	none; or as established in approved Urban Village Plan	None, or as established in approved Urban Village Plan	none	10; less than 10 if established in approved development permit
Side, corner	12.5	none; or as established in approved Urban Village Plan	12.5, or as established in approved Urban Village Plan	12.5	10; less than 10 if established in approved development permit

Rear, interior	25	25; or as established in approved Urban Village Plan	None, or as established in approved Urban Village Plan	none	10; less than 10 if established in approved development permit
Rear, corner	25	25; or as established in approved Urban Village Plan	None, or as established in approved Urban Village Plan	none	10; less than 10 if established in approved development permit
Maximum height (feet) (Note 1 and 3)	35, unless a different maximum is established in Chapter 20.85	50, unless a different maximum is established in Chapter 20.85; or as established in approved Urban Village Plan	50, unless a different maximum is established in Chapter 20.85, or as established in approved Urban Village Plan	65, unless a different maximum is established in Chapter 20.85	65, unless a different maximum is established in Chapter 20.85
Maximum individual occupant square footage (square feet) (Note 2)		2,500/Personal service shop 5,000/Eating, drinking or entertainment establishment 15,000/All other uses (See Note 2); None in approved Urban Village Plan			
Parking					

	See Chapter 20.90	See Chapter 20.90; or established in approved Urban Village Plan	See Chapter 20.90, or as established in approved Urban Village Plan	See Chapter 20.90	See Chapter 20.90 unless a different minimum is established in an approved Development Permit

Notes:

1. An alternative maximum height may be established as described in Chapter 20.85. Where an alternative maximum height restriction has been established as described in Chapter 20.85, that regulation described in Chapter 20.85 shall govern and control over the provisions of this section.
2. In the CP commercial pedestrian district, lots located wholly within the West San Carlos Street neighborhood business district, as indicated on the general plan land use diagram, shall not be subject to the maximum individual occupant square footage requirements set forth in this section.
3. An alternative maximum residential density and height may be established in the Neighborhood Business District Overlay as described in Part 5 of Chapter 20.65. Where an alternative maximum heights and residential density restrictions has been established as described in Part 5 of Chapter 20.65, that regulation shall govern and control over the provisions of this section.

(Ords. 26248, 26455, 27457, 29176, 29218, 29364, 30516, 31168.)

20.40.210 - Setback - Abutting alley.

In computing the depth of a rear setback area for any building, where such rear setback area opens onto a public alley, one-half of such alley may be assumed to be a portion of the rear setback area.

(Ord. 26248.)

20.40.220 - Maximum individual tenant square footage - CP district.

The maximum tenant square footage in the CP district may be exceeded only pursuant to and in conformance with an approved conditional use permit as set forth in Chapter 20.100.

(Ord. 26248.)

20.40.230 - Maximum height - Exception, number of stories - Exception.

Notwithstanding the provisions of Section 20.40.200, in any commercial district, the maximum height restrictions shall not apply to SRO residential hotels, SRO living unit facilities and mixed commercial/residential projects.

(Ords. 26248, 29218, 30336, 30396.)

20.40.240 - Lot area - Exception.

Notwithstanding the provisions of Section 20.40.200, in all the commercial districts, the minimum area of a lot, whose area as shown on a final subdivision map approved by the city, is less than the minimum required but not less than five thousand square feet, shall be the area shown for such lot or parcel on such subdivision map.

(Ord. 26248.)

20.40.250 - Front setback - Exception, streets with residence districts.

Notwithstanding, the provisions of Section 20.40.200 where lots situate on one side of a street between two intersecting streets are situate partly in a commercial district and partly in a residence district, the front setback requirements applicable to such residence district shall apply to all lots in the Commercial District, except that where a lot or lots situate within a Commercial District are located on one side of a street between an intersecting street and a lot located in a Residence District, the front setback requirements of the Residence District shall apply only to that portion of the lot or lots situate in the Commercial District that is located within twenty feet of the lot situate within a Residence District. The provisions of this section shall not apply to lots in the CP Commercial Pedestrian District and lots in the PQP Public/Quasi-Public District.

(Ords. 26248, 28449, 29364.)

20.40.260 - Front setback - Exception, CP district.

The director may grant an exception to the maximum front setback for a lot in the CP commercial district if he finds that the adjacent lot(s) have a greater setback and the allowance of a greater setback on the subject lot would promote a more consistent pattern of development, and/or the greater setback is needed to accommodate building design elements.

(Ords. 26248, 26455.)

20.40.270 - Side setback - Exceptions, interior lot.

Notwithstanding the provisions of Section 20.40.200, in the CP commercial district, a building side setback shall be required for interior lots on that side of each such lot which abuts on the side of a lot situated in a residence district, in which case the side setback requirements shall be a minimum of ten feet.

(Ords. 26248, 27457.)

20.40.290 - Rear setback - Exception, property abutting a commercial or less restrictive district.

Notwithstanding the provisions of Section 20.40.200, there shall be no rear setback for property situate in any commercial district whenever the entire rear property line of such property abuts property situate in any commercial district or less restrictive district.

(Ord. 26248.)

20.40.300 - Reserved.

Editor's note— Section 20.40.300, pertaining to Exception - Maximum Number of Stories, Height, and Floor Area Ratio Exception, was repealed by Ordinance 29218, Adopted February 26, 2013.

Part 4 - SETBACK REGULATIONS

20.40.400 - Setback areas - Open, unobstructed, and unoccupied.

Except as otherwise expressly and specifically provided in other sections of this Title, every part of every Setback Area shall be kept open, unobstructed, and unoccupied on the surface of the ground, above the surface of the ground, and below the surface of the ground by all Buildings or Structures except as follows:

A. Sills, eaves, belt courses, cornices, canopies, and other similar architectural features may project horizontally for a distance of not more than two (2) feet into the air space above the surface of the ground in any Setback Area;

B. Any portion of a building (including but not limited to bay windows, chimneys, or architectural elements that project out from the primary surface of the Building Facade, whether on a foundation or cantilevered) not occupying in the aggregate more than twenty percent (20%) of the length of the side of the Building, may project horizontally for a distance of not more than two (2) feet into any Setback Area, provided that such extensions maintain a minimum Setback of at least three (3) feet;

C. In addition to projection into the Setback Area allowed under Subsection B., wells for Basement windows or stairs of up to ten (10) feet in length each, not occupying in the aggregate more than twenty percent (20%) of the length of the side of the Building on which they are located, may project horizontally for a distance of not more than two (2) feet into the Side and Rear Setback Area, provided that such extensions maintain a minimum Setback of three (3) feet;

D. Tankless water heaters, heat pumps, and power inverters may project horizontally for a distance of not more than two (2) feet into any Setback Area provided such extensions maintain a minimum side setback of three feet;

E. Overhead wires necessary for electrical and telephone service to a Building on the Lot;

F. Underground lines necessary for the sewerage, drainage, plumbing, water, gas, and electrical needs of the Lot or of a Building on the Lot; and

G. Walks and driveways for vehicular or pedestrian access to the Lot; and

H. Short-term Bicycle Parking Facilities that meet the following requirements:

1. Compliance with the provisions of Chapter 20.90 and all applicable local, State, and Federal standards including but not limited to Building and Fire regulations; and
2. Adequate screening with landscaping or architectural elements from public view; and
3. Maintenance of a minimum of a five (5) foot Front Setback Area that is open, unobstructed, and unoccupied; and
4. Design that ensures adequate circulation of vehicles, bicycles, and people.

(Ords. 26248, 29011, 29364, 31298.)

Part 5 - GENERAL REGULATIONS

20.40.500 - Late night use and activity.

A. No establishment other than office uses, in any commercial district shall be open between the hours of 12:00 midnight and 6:00 a.m. except pursuant to and in compliance with a conditional use permit as provided in Chapter 20.100.

B. No outdoor activity, including loading, sweeping, landscaping or maintenance shall occur within one-hundred fifty feet of any residentially zoned property between the hours of 12:00 midnight and 6:00 a.m. except pursuant to and in compliance with a conditional use permit as provided in Chapter 20.100.

(Ord. 26248.)

20.40.510 - Permanent structure required.

No use shall be deemed to be a permitted use on a site in any commercial district unless it is being conducted as part of a business which maintains on that site a permanent, fully enclosed building erected pursuant to a valid building permit issued for that site, excepting only those uses specifically permitted, under this part or this title, to operate without a permanent building on site.

(Ord. 26248.)

20.40.520 - Outdoor uses within 150 feet of residentially zoned property.

No use, which in whole or in part, consists of, includes, or involves any outdoor activity or sale or storage of goods, products, merchandise or food outdoors shall occur on any lands if any part of such lands or any part of the lot on which such buildings are located is situated within one hundred fifty feet of residentially zoned property situate within or outside the city except with a special use permit as provided for in Chapter 20.100, except for the following:

A. Seasonal sales in accordance with the provisions in Part 14, Chapter 20.80.

B.

Service windows for pedestrians or automatic teller machines for pedestrians both of which are associated with financial institutions.

C. Cigarettes, ice, candy, food, and soft drinks dispensed from self-service, coin-operated automatic vending machines.

D. Plant nursery sales.

E. Outdoor dining incidental to a public eating establishment or a retail establishment or other outdoor uses associated with an on-site business shall be pursuant to and in compliance with Part 10.5 of Chapter 20.80. Outdoor dining within 150 feet of a residential zoning district that does not conform to Part 10.5 of Chapter 20.80 requires issuance of a Special Use Permit.

F. Outdoor vending of whole, uncut, fresh fruits and vegetables in conformance with the provisions of Part 10, Chapter 20.80.

G. Small certified farmers' markets in conformance with the provisions of Part 3.5, Chapter 20.80.

H. Neighborhood agriculture in compliance with the provisions of this title.

(Ords. 26248, 28321, 28449, 29254, 29364, 31079.)

20.40.525 - Residential uses - Prohibition on provision of services to nonresidents.

No residential use which includes the provision of service to residents may offer services to nonresidents.

(Ord. 26455.)

20.40.530 - Lighting.

A. All lighting or illumination shall conform with any lighting policy adopted by the city council.

B. Light fixture heights should not exceed eight feet when adjacent to residential uses unless the setback of the fixture from property line is twice the height of the fixture. No ground mounted light fixture shall exceed twenty-five feet in height.

C. Any lighting located adjacent to riparian areas shall be directed downward and away from riparian areas.

(Ord. 26248.)

20.40.540 - Lighting adjacent to residential properties.

Any and all lighting facilities hereafter erected, constructed, or used in connection with any use conducted on any property situate adjacent to a site or lot used for residential purposes shall be arranged and shielded that all light will be reflected away from any residential use so that there will be no glare which will cause unreasonable annoyance to occupants of such property, or otherwise interfere with the public health, safety, or welfare.

(Ord. 26248.)

20.40.560 - Screening adjacent to residentially zoned properties.

Any use conducted on any property shall be effectively screened at the property line from any abutting property in a residential district. The screening required hereby shall be a masonry wall or a solid wooden fence five feet in height, except that any portion thereof situate in the required setback area from abutting public streets shall be not more than four feet; and in the event such use included any outdoor activity, such screening shall also include such trees or plants as the director deems reasonable necessary to effectively screen such use from the adjoining residence district. Such screening shall at all times be maintained in good condition and be kept free at all times of signs. In addition, where a use involving outdoor activity is on a lot or parcel adjoining a residential district, such lot or parcel shall be landscaped in a manner approved by the director.

(Ords. 26248, 26455.)

Part 6 - PERFORMANCE STANDARDS

20.40.600 - Performance standards.

A. In the CO, CP, CN, and CG Commercial Districts and in the PQP Public/Quasi-Public District no primary, secondary, incidental or conditional use or activity related thereto shall be conducted or permitted:
   1. In a manner that causes or results in the harmful discharge of any waste materials into or upon the ground, into or within any sanitary or storm sewer system, into or within any water system or water, or into the atmosphere; or
   2. In a manner that constitutes a menace to persons or property or in a manner that is dangerous, obnoxious, or offensive by reason of the creation of a fire, explosion, or other physical hazard, or by reason of air pollution, odor, smoke, noise, dust vibration, radiation, or fumes; or
   3. In a manner that creates a public or private nuisance.

B. Without limiting the generality of the preceding paragraph, the following specific standards shall apply in the Commercial Zoning Districts and in the PQP Public/Quasi-Public District:
   1. Air Pollution. Total emissions from any use or combination of uses on a site shall not exceed the emissions and health risk thresholds as established by the director of planning.
   2. Noise. The sound pressure level generated by any use or combination of uses on a property shall not exceed the decibel levels indicated in Table 20-105 at any property line, except upon issuance and in compliance with a special use permit as provided in Chapter 20.100.

Table 20-105

Noise Standards

	Maximum Noise Level in Decibels at Property Line

Commercial or PQP use adjacent to a property used or zoned for residential purposes	55
Commercial or PQP use adjacent to a property used or zoned for commercial or other non-residential purposes	60

3. Vibration. There shall be no activity on any site that causes ground vibration that is perceptible without instruments at the property line of the site.

(Ords. 26388, 26456, 29364.)